EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 30141/10
Kemal GÖÇMEN against Turkey
and 3 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 5 September 2017 as a Committee composed of:

Julia Laffranque, *President,*
Paul Lemmens,
Valeriu Griţco, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by Ms D. Demirel, a lawyer practising in Ankara.

The Turkish Government ("the Government") were represented by their Agent.

The applicants, public agents, complained that the disciplinary sanctions of warning or reprimand that were imposed on them for taking part in a demonstration, had infringed their right to freedom of association. They further complained about the absence of a domestic remedy to challenge these disciplinary sanctions. They relied on Articles 6 § 1, 11 and 13 of the Convention.

On 5 August 2015 and 16 August 2016 the Court received friendly settlement declarations signed by the parties under which the applicants

agreed to waive any further claims against Turkey in respect of the facts giving rise to these applications against an undertaking by the Government to pay *ex gratia* to each of them 500 euros (EUR) to cover any pecuniary and non-pecuniary damage and a total of EUR 1,850 to cover any and all costs and expenses, which will be converted into national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

THE LAW

Given that the applications at hand concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications,

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 28 September 2017.

Hasan Bakırcı
Deputy Registrar

Julia Laffranque
President

APPENDIX

No.	Application no.	Lodged on	Applicant Date of birth Place of residence
1.	30141/10	12/05/2010	**Kemal GÖÇMEN** 12/02/1961 Mersin
2.	38337/10	05/05/2010	**Mehmet ALYÜZ** 01/01/1954 Bursa **Sadık ERAYDIN** 07/04/1962 Aydın **Cüneyt DAĞAŞAN** 04/03/1962 Aydın **Hacı Ali BOZTAŞ** 10/10/1984 Aydın
3.	41308/10	15/04/2010	**İlyas ATAŞ** 22/03/1962 Manisa **Abdulkadir BAYDUR** 01/01/1969 Manisa **Süreyya UŞAKLI** 03/07/1965 Manisa **Ali SAVAŞ** 02/03/1961 İzmir **Esin UYAR** 22/09/1962 Manisa **Özlem ZERENER** 21/05/1970 Manisa **Yıldırım USLU**

No.	Application no.	Lodged on	Applicant Date of birth Place of residence
			28/06/1965 Manisa **Ayşe Armağan ERSAN** 21/07/1980 Manisa **Atalay DOĞAN** 01/11/1956 Manisa **Nuriye TUNCAR** 23/02/1970 Manisa **Güler METE** 25/08/1970 Manisa **Muharrem SİVRİLER** 01/07/1956 Manisa **Gülsen MUTLUAY** 06/05/1964 Manisa **Ayhan ESMEROĞLU** 01/01/1967 İzmir **Oya UZUN** 07/04/1964 İzmir **Nalan PEYNİRCİ** 07/03/1963 Manisa **Cemile Bahar SERT** 15/04/1967 Manisa **Selami YAMAN** 01/01/1962 Manisa **Fikret PEKŞEN** Manisa **Serhat ÖZTÜRK** 25/04/1974 Manisa **Mehmet TANRIOVER**

No.	Application no.	Lodged on	Applicant Date of birth Place of residence
			06/05/1953 Manisa **Selma TANRISEVEN** 01/02/1959 İzmir
4.	49021/10	20/07/2010	**Ali ÇELEBİ** 27/07/1963 Antalya